3969

Executive Order

Concerning Costs and the Taxation Thereof in the District Court and Magistrate Courts of the Panama Canal Zone, and Notices in Probate and Guardianship Proceedings.

By virtue of the authority vested in me by the Panama Canal Act, approved August 24, 1912, and the Act of Congress amendatory thereto, approved September 21, 1922, I hereby establish and prescribe the following rules of practice for the District Court and the Magistrate Courts of the Panama Canal Zone with relation to costs and the taxation thereof, and notices in probate and guardianship proceedings:

No. 3213

Section 1. Section II of the Executive Order of January 9, 1920, is hereby repealed, and the following is established and prescribed in lieu thereof:

"Section II. The United States of America, the Government of the Canal Zone, and The Panama Canal, or any officer thereof who sues or is sued in his official capacity, shall not be required to pay any costs for the bringing or defending of an action. Every other plaintiff in a civil case commenced in the District Court, except as hereinafter designated, shall deposit with the Clerk or Assistant Clerk thereof a docket fee of Eight Dollars ($8.00) upon the filing of the complaint. The defendant, or defendants, in said action making appearance therein shall deposit in his or their behalf the sum of Two Dollars ($2.00). An intervenor who is allowed to intervene therein shall deposit Five Dollars ($5.00) upon the filing of the petition of intervention. A plaintiff in a habeas corpus, mandamus, certiorari, or prohibition case shall deposit Three Dollars ($3.00) upon the filing of the complaint, and a defendant therein, if a public officer, shall not be required to make a deposit for appearance therein. Any other defendant shall make a deposit of Two Dollars ($2.00) on entering appearance in such action. Such sum or sums so deposited shall be full compensation for the Clerk or Assistant Clerk for all services performed in any action, except lawful copy fees for furnishing copies of any paper or record therein. Any other plaintiff in a civil case commenced in a Magistrate's Court at the time of commencing the action shall deposit a docket fee of Three Dollars ($3.00). The defendant, or defendants, who appear in said action, or an intervenor who intervenes therein, shall deposit a fee of One Dollar ($1.00) at the time of appearance. Such sum or sums so deposited shall be full compensation for all services of the Magistrate in said action; except that lawful copy fees may be charged and collected for furnishing copies of any paper or record therein."

Costs Wills Guardian and Ward

Section 2. Said Executive Order of January 9, 1920, is amended by adding thereto the following sections, to wit:

"Section XV. The party in whose favor judgment is rendered in the District Court and who claims his costs, must within five days after the verdict or notice of the decision of the Court deliver to the Clerk and to the adverse party, or his attorney, a memorandum of the items of his costs and necessary disbursements paid or incurred in the action or proceeding, which memorandum must be verified by the oath of the party, or his attorney or agent, or by the clerk of his attorney, stating that to the best of his knowledge and belief the items are correct and that the disbursements have been necessarily incurred in the action or proceeding. A party dissatisfied with the costs so claimed may, within five days after notice of filing of the bill of costs, file a motion to have the same taxed by the Court or the Judge thereof in said action.

"Section XVI. The costs in the Magistrate Court shall be taxed by the Magistrate without the filing and service of a memorandum of costs as provided in the preceding Section, and upon such information as to Magistrate and Constable costs and other costs and fees and mileage of witnesses as the Magistrate may require.

"Section XVII. The fees for the services of the Clerk or Assistant Clerk of the District Court in probate and guardianship matters shall be as follows:

Where the value of the estate does not exceed $1,000	$3.00
Where the value of the estate exceeds $1,000, and does not exceed $5,000	5.00
Where the value of the estate exceeds $5,000	25.00

Such fees shall be in full of the services of the Clerk or Assistant Clerk in such proceedings, except that they shall be entitled to charge lawful fees for furnishing copies of papers and records therein. The Judge of the District Court shall have the power, in his discretion, in any case where the estate is small and the circumstances warrant, to waive the payment of any fee to the Clerk or Assistant Clerk for services to be performed in such proceedings.

"Section XVIII. It shall be lawful for the United States District Court, or the Judge thereof, to provide by order for posting in three public places within the Division of the Canal Zone where probate or guardianship proceedings are begun or are pending, for a period of not less than ten days, notice of any proceeding in any probate or guardianship matter, including the probate of wills, the appointment of an executor, administrator, or guardian, notice to creditors to file claims, the settlement of final accounts, the distribution of property, and the discharge of executors, administrators, or guardians, and to dispense with newspaper publication of notice in any case. Proof of the posting of such notice, with a copy of the notice so posted attached thereto, shall be made by affidavit by the person posting the same. Where notice is given by publication, the proof of such publication may be established by the certificate of the Clerk or Assistant Clerk of the Court. Such proof, in either case, shall be filed before any order is made by the District Court in such proceeding to which such notice relates.

"Section XIX. The first two clauses of Section 531 of the Code of Civil Procedure for the Canal Zone, reading as follows:

"'For the complaint or answer, four dollars.
For his own attendance and that of his lawyers, down to and including final judgment, ten dollars.',

and all laws, rules and regulations of the Canal Zone in conflict herewith are hereby repealed.

"Section XX. This Order shall take effect thirty (30) days from this date."

CALVIN COOLIDGE

THE WHITE HOUSE,
March 5, 1924.

[No. 3969.]

GOVERNMENT PRINTING OFFICE